

26STCV09599 26STCV09599

County: los-angeles

Division: Civil Law and Motion

Department: 307

Hearing date: 2026-07-28

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Case Number: 26STCV09599 Hearing Date: July 28, 2026 Dept: 307

18 TENTATIVE RULING 9:15 a.m., Tuesday, July 28, 2026

ALPER

JONSSON OZPINAR v. MAIN SB LLC, et al. [26STCV09599]

[1] DEFENDANT

111 W 7 OWNER, LLC'S DEMURRER WITH A MOTION TO STRIKE AS TO THE COMPLAINT

[2] DEFENDANTS

SBDTLA 1, LLC, SBDTLA 2, LLC, SBDTLA, 3, LLC, and SBDTLA 4, LLC'S DEMURRER WITH A MOTION TO STRIKE AS TO THE COMPLAINT

NOTICE:

OK

MEET AND

CONFER: DEFECTIVE [Counsel

for both 111 W 7 and SBDTLA fail to clarify whether the parties engaged in meet and confer efforts in person, by telephone, or by video conference after obtaining a statutory extension. (Wijeyewickrema Decl., ¶ 7; Ramos Decl., ¶ 8.)]

BACKGROUND:

Real property ownership and occupancy dispute

TIMELINE:

10/2015 to 9/2024: Plaintiff Alper Jonsson

Ozpinar ("Plaintiff") and his wife, Louise Jonsson Ozpinar, were tenants in

Unit 605 of the residential apartment complex located at 111 W 7th Street, Los Angeles, CA 90013 (the "Property" or the "Unit"). Plaintiff executed a written lease (the "Lease") with Defendant Main SB, LLC ("Main SB"), the former owner of the Property, on 10/4/2025. (Compl., Exh. A.)

4/6/2022: Main SB sold the Property to Defendants SBDTLA 1, LLC, SBDTLA 2, LLC, SBDTLA 3, LLC, and SBDTLA 4, LLC (collectively, "SBDTLA").

3/31/2023: SBDTLA sold the Property to Defendants 111 W 7 Owner, LLC ("111 W 7"). (Compl., Exh. B.)

4/2023:

Mrs. Ozpinar relocated to Sweden allegedly due to the inhabitable conditions of the Property.

9/2024: Plaintiff relocated to live with his family in Sweden, but he maintained

possession of the Unit.

3/25/2026: Plaintiff files the Complaint, alleging causes of action for:

1. Breach of Written Contract
2. Specific Performance/Equitable Conveyance
3. Constructive Trust
4. Cancellation of Instruments
5. Quiet Title
6. Declaratory Relief
7. Constructive Eviction
8. Premises Liability

9. Violations of the California
Anti-Harassment Statute

4/6/2026: An unlawful detainer action involving
the Property (Case No. 25STUD09542) (the "UD Action") is resolved by jury trial
and judgment is entered in favor of 111 W 7 and SBDTLA. (See 111 W 7 Request
for Judicial Notice ("RJN"), Exhs. 1-3; see SBDTLA RJN, Exh. 2.)

6/5/2026: 111 W 7 files this Demurrer and
Motion to Strike, which is followed by Plaintiff's Opposition (7/15/2026) and 111
W 7's Reply (7/21/2026).

SBDTLA
files this Demurrer and Motion to Strike, which is followed by Plaintiff's Opposition
(7/17/2026) and SBDTLA's Reply (7/21/2026).

TENTATIVE
RULING:

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[1]
DEFENDANT 111 W 7 OWNER, LLC'S DEMURRER TO THE COMPLAINT is SUSTAINED with
LEAVE TO AMEND. DEFENDANT 111 W 7 OWNER, LLC'S MOTION TO STRIKE is DENIED as
MOOT.

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[2]
DEFENDANTS SBDTLA 1, LLC, SBDTLA 2, LLC, SBDTLA 3, LLC, and SBDTLA 4, LLC'S
DEMURRER TO THE COMPLAINT is SUSTAINED with LEAVE TO AMEND. DEFENDANTS SBDTLA
1, LLC, SBDTLA 2, LLC, SBDTLA 3, LLC, and SBDTLA 4, LLC'S MOTION TO STRIKE is DENIED
as MOOT in part and DENIED in part.

I. DEMURRER
OF DEFENDANT 111 W 7 OWNER, LLC – SUSTAINED with LEAVE TO AMEND

111 W 7 demurs to the second through fifth
and the seventh through ninth causes of action in the Complaint pursuant to
Code of Civil Procedure section 430.10, subds. (e) and (f). 111 W 7 also demurs
to the causes of action arises out of habitability issues and the right to

possession of the Property on the grounds that such claims are barred by the preclusion doctrines.

A.

2nd

Cause of Action: Specific Performance/Equitable Conveyance – SUSTAINED with
LEAVE TO AMEND

Plaintiff's

second cause of action is inadequately pled. Plaintiff alleges that the Lease contained a contractual right of first offer ("ROFO") to purchase the Unit if Main SB decided to sell or transfer the Unity. (Compl., ¶¶ 17-18, 48, Exh. A.) The Right to Purchase is set forth in Section 29 of the Lease, and states: "Tenant has been informed that the subject building has been approved for condominium. If seller should sell the unit upon the expiration of this lease, Tenant will have the right to purchase the unit at market price or vacate the unit 30 days from receiving written request." (Id. Exh. A, § 29.) However, the Property was subsequently sold to both SBDTLA and later 111 W 7 without compliance with the ROFO, despite these purchasers' notice of the ROFO. (Id. ¶¶ 25, 28-29, 51.) As a result, Plaintiff seeks specific performance and equitable conveyance requiring the two transfers to be set aside and transferring title of the Unit to Plaintiff under the ROFO. (Id. ¶ 53.) 111 W 7 is the current record owner of the Property. (Id. ¶¶ 10, 23, Exh. B.)

111 W 7

argues that Plaintiff has not demonstrated a basis for contractual remedies from 111 W 7. The Lease was executed between the original owner, Main SB, and Plaintiff. (Compl., ¶¶ 16-18, Exh. A.) 111 W 7 was not a party to the Lease. (Id. Exh. A.) Plaintiff does not specifically allege that 111 W 7 assumed the Lease upon its purchase of the Property. "Normally, the right is enforceable against third persons entering into a contract to buy the property with notice of the holder's right." (*Hartzheim v. Valley Land & Cattle Co.* (2007) 153 Cal.App.4th 383, 389, *italics added*.) Thus, the inquiry turns on whether 111 W 7 had adequate notice of Plaintiff's ROFO.

Based on

the plain language of the Lease, the Court finds that the "Right to Purchase" offered in the Lease is not a traditional "right of first offer." (Compl., Exh. A, § 29.) The clause does not state that the Property owner promised to convey the Unit to Plaintiff in the event of a competing offer, only that an

opportunity to purchase the Unit at market price would be given. (Ibid.) The Lease exhibit controls over Plaintiff's characterization of this provision as a "ROFO" in his Complaint. Even if this clause can be construed as a traditional "ROFO," the terms of the provision are not sufficiently certain to give notice of the "precise act which is to be done." (Civ. Code, § 3390, subd. (e).) The clause includes no price-setting method in the event that the Property owner received competing offers and no response period or expiration date. (Compl., Exh. A, § 29.) In fact, Plaintiff effectively concedes that the provision is missing material terms, including the price-setting method, the response period, contingencies for bad-faith offers, or contingencies if the sale was already committed to a third party. (Compl., ¶ 24.) Further, Plaintiff does not allege that the Unit was converted to a stand-alone condominium unit (an apparent condition precedent of the right to purchase), only that ownership of the entire Property was transferred between owners. (Id. ¶¶ 21-31.) If even Plaintiff lacked notice of a reasonably certain ROFO, it is unreasonable to expect the buyers, including 111 W 7 to have such notice.

B.

3rd

Cause of Action: Constructive Trust – SUSTAINED with LEAVE TO AMEND

Plaintiff's

third cause of action is inadequately pled. 111 W 7 argues that Plaintiff's request for a constructive trust cannot be pled as a separate basis for liability. Indeed, a constructive trust is not a cause of action, but a remedy. (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 75 (Stansfield); see Monastra v. Konica Business Machines, U.S.A., Inc. (1996) 43 Cal.App.4th 1628, 1645 ["A constructive trust plainly is a proper remedy" for a fraudulent transfer claim.]; see Habitat Trust for Wildlife, Inc. v. City of Rancho Cucamonga (2009) 175 Cal.App.4th 1306, 1332 ["constructive trust is an equitable remedy...."]; PCO, Inc., supra, 150 Cal.App.4th at p. 398 [constructive trust is a remedy]; see Glue-Fold, Inc. v. Slautterback Corp. (2000) 82 Cal.App.4th 1018, 1023 [same]; see Olson v. Toy (1996) 46 Cal.App.4th 818, 823 [same].) Plaintiff effectively concedes this point. (Opp., at p. 7.) Accordingly, the third cause of action is properly subject to demurrer. Plaintiff is granted leave to amend to the limited extent that he can appropriately replead his request for a constructive trust as a

remedy in the Prayer for Relief.

C.

4th

Cause of Action: Cancellation of Instruments – SUSTAINED with LEAVE TO AMEND

Plaintiff's

fourth cause of action is inadequately pled. "A written instrument, in respect to which there is a reasonable apprehension that if left outstanding it may cause serious injury to a person against whom it is void or voidable, may, upon his application, be so adjudged, and ordered to be delivered up or canceled."

(Civ. Code, § 3412.)¹ "To prevail on a claim to cancel an

instrument, a plaintiff must prove (1) the instrument is void or voidable due to, for example, fraud; and (2) there is a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of one's position." (U.S. Bank National Assn. v. Naifeh² (2016)

1 Cal.App.5th 767, 778.)

111 W 7

argues that Plaintiff has not adequately alleged that the grant deed from SBDTLA to 111 W 7 is either void or voidable. Indeed, Plaintiff's allegations that the grant deed was "void or voidable" is merely conclusory. (Compl., ¶ 62.) Plaintiff indicates that the grant deed was "voidable" because it was executed in violation of Plaintiff's ROFO. (Id.; see Opp., p. 8.)

Plaintiff appears to concede that the grant deed was not "void." A deed that is merely voidable "can be relied upon and enforced by a bona fide purchaser," that is, a purchaser who took title of the Property for value and without notice of a prior equitable claim to title. (Fallon v. Triangle Management Services, Inc. (1985) 169 Cal.App.3d 1103, 1106; Schiavon v. Arnaudo Brothers (2000) 84 Cal.App.4th 374, 376 ["Under California law, a bona fide purchaser for value takes title free and clear of an improperly reconveyed deed of trust, so long as the reconveyance is voidable and not void."]; see also Civ. Code, § 1107 ["Every grant of an estate in real property is conclusive against the grantor, also against every one subsequently claiming under him, except a purchaser or incumbrancer who in good faith and for a valuable consideration acquires a title or lien by an instrument that is first duly recorded."].) As described above, Plaintiff fails to adequately allege factual support for his conclusion that 111 W 7 had notice of Plaintiff's Right to Purchase, let alone that Plaintiff had an equitable claim to title adverse to 111 W 7. (See supra, Section I.A.) The plain language of the Lease controls over Plaintiff's

contradictory allegations related to the ROFO. Plaintiff must plead additional specific facts demonstrating a basis for notice.

D.

5th

Cause of Action: Quiet Title – SUSTAINED with LEAVE TO AMEND

Plaintiff's

fifth cause of action is inadequately pled. "[O]rdinarily an action to quiet title will not lie in favor of the holder of an equitable title as against the holder of a legal title." (Bacon v. Bacon (1937) 21 Cal.App.2d 540, 544; G.R. Holcomb Estate Co. v. Burke (1935) 4 Cal.2d 289, 296 [same]; Stafford v. Ballinger (1962) 199 Cal.App.2d 289, 294–295 [same].) Plaintiff admits that 111 W 7 holds record legal title to the Property. (Compl., ¶ 28, Exh. B.) Plaintiff also concedes that his claim to title is equitable in nature. (Opp., at p. 9.) While narrow exceptions to this rule exist, such as in the event of fraud or breach of fiduciary duty, Plaintiff does not allege facts to support that any exception applies here. (See Liberty National Enterprises, L.P. v. Chicago Title Ins. Co. (2013) 217 Cal.App.4th 62, 81.) Plaintiff also fails to submit any legal authority to support his contentions disputing the categorical nature of the general rule. Additionally, Plaintiff's notice-based arguments fail for the same reasons described above. (See supra, Sections I.A, I.C.)

E.

7th

Cause of Action: Constructive Eviction – SUSTAINED with LEAVE TO AMEND

Plaintiff's

seventh cause of action is inadequately pled. Plaintiff's constructive eviction claim is based on generalized allegations that the Property suffered from various inhabitable conditions, including electrical problems, negligent security, and other unspecified safety issues and unsanitary conditions and that the Defendants collectively refused to cure these conditions. (Compl., ¶¶ 80-81.) Plaintiff vacated the Unit in September 2024 as a result of Defendants' collective failure to abate these issues. (Id. ¶ 81.)

111 W 7

argues that liability for Plaintiff's habitability-related allegations, which form the entire basis for Plaintiff's constructive eviction claim, is precluded

by the judgment favoring 111 W 7 in the UD Action, entered on 4/6/2026, under the doctrines of both res judicata and collateral estoppel. (Mot., at p. 15.) Both doctrines require a showing that the prior proceeding was resolved by a final adjudication on the merits. (Zevnik v. Superior Court (2008) 159 Cal.App.4th 76, 82; Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 896.) "California law is settled that pending appeal a trial court judgment is not final and will not be given res judicata effect." (Sandoval v. Superior Court (1983) 140 Cal.App.3d 932, 936.) However, "once the appeal is settled ... and thereafter dismissed, ... the trial court judgment reemerges with sufficient finality to permit the application of collateral estoppel." (Id. at p. 937.)

Here, the

UD Action was adjudicated in favor of 111 W 7 by jury trial on 4/6/2026. (RJN, Exh. 1.) Judgment was entered in favor of 111 W 7 on the same day, awarding 111 W 7 possession of the Unit, past due rent, and forfeiture of the lease. (RJN, Exh. 2.) The jury concluded (in a vote of 9 to 3) that 111 W 7 had not failed to provide substantially habitable premises during the time period for which Plaintiff failed to pay the rent due on the Property. (RJN, Exh. 1, at p. 4.) Plaintiff concedes that this factual question was directed to Plaintiff's affirmative defense of habitability. (Opp., at p. 14.)

However,

Plaintiff argues that the judgment in the UD Action is not "final" for the purposes of the preclusion doctrines because the judgment is still pending the resolution of his appeal. (Opp., at p. 14.) The Court, on its own motion, takes judicial notice of the court docket in the UD Action and finds that Plaintiff is indeed pursuing his appellate rights. As of the date this tentative ruling was prepared, on 7/27/2026, the most recent appellate activity represented on the trial court's docket was the Clerk's Notice of Default on Appeal (dated 7/15/2026), notifying Plaintiff that he was required to cure the default on or before 7/30/2026. (See Notice of Default, Case No. 25STUD09542.) Because the appeal remains pending as of this date, 111 W 7's preclusion defense is premature. However, the Court will reconsider the defense in a subsequent demurrer. (See Gombiner v. Swartz (2008) 167 Cal.App.4th 1365, 1371 ["The res judicata effect of an unlawful detainer proceeding is narrow, but is not nonexistent."].)

Notwithstanding,

the issue with Plaintiff's constructive eviction claim, as currently pled, is that it utilizes improper group pleading and fails to clearly differentiate the

acts of 111 W 7 from the acts of the other Defendants. (Complaint, ¶¶ 38, 80-84.) Indeed, Plaintiff's allegations regarding the habitability concerns on the Property are impermissibly vague. "A constructive eviction occurs when the acts or omissions to act of a landlord, or any disturbance or interference with the tenant's possession by the landlord, renders the premises, or a substantial portion thereof, unfit for the purposes for which they were leased, or which has the effect of depriving the tenant for a substantial period of time of the beneficial, enjoyment or use of the premises." (Groh v. Kover's Bull Pen, Inc. (1963) 221 Cal.App.2d 611, 614, italics added.) In the Complaint, Plaintiff does not identify any specific dates of the electrical problems or unsanitary conditions or the specific dates on which he made complaints to 111 W 7. While Plaintiff identifies a single safety incident on May 31, 2024, he admits that the fire department concluded that no crime occurred and he does not identify any specific acts or omissions attributing fault to 111 W 7 for this incident. (Id. ¶ 81; see infra, Section I.F.) Plaintiff must plead more specific factual details clarifying how the conduct by 111 W 7 (as opposed to the other defendants) was causally connected to the alleged habitability issues and Plaintiff's constructive eviction.

F.

8th

Cause of Action: Premises Liability – SUSTAINED with LEAVE TO AMEND

Plaintiff's

eighth cause of action is inadequately pled. "The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury." (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.) "A landowner owes a duty to exercise reasonable care to maintain his or her property in such a manner as to avoid exposing others to an unreasonable risk of injury." (Barnes v. Black (1999) 71 Cal.App.4th 1473, 1478.) "Ordinarily, there is no duty to protect others from third party criminal activity. Courts, however, have recognized exceptions to the general no-duty-to-protect rule, one of which is the 'special relationship' doctrine. [...] Based on the special relationship, commercial proprietors... are required to maintain land in their possession and control in a reasonably safe condition and... this general duty includes taking reasonable steps to secure common areas against foreseeable criminal acts of third parties that are likely to occur in the absence of such precautionary measures." (Ericson v. Federal Express

Corp. (2008) 162 Cal.App.4th 1291, 1300, internal quotations and citations omitted.)

Here,

Plaintiff alleges that 111 W 7 “negligently allowed an assailant to gain access to the [] Property and access the sixth floor where Plaintiff [] lived.” (Compl., ¶ 85.) The same morning, Plaintiff woke up to the smell of gas, unable to breath. (Id. ¶ 86.) Plaintiff traced the smell to a bottle left outside his front door. (Id. ¶ 87.) Plaintiff admits that the Los Angeles Fire Department concluded that no crime had occurred before there was no fire. (Id. ¶ 91.) The issue with this cause of action is that Plaintiff identifies no factual basis to conclude that 111 W 7 was negligent in allowing the unidentified “assailant” into the Property, or that the “assailant’s” conduct was foreseeable. Plaintiff does not identify a failure to take precautionary measures, such as a security failure, he does not allege that 111 W 7 had notice of prior similar incidents, and he does not otherwise describe what 111 W 7 did or failed to do. Plaintiff also identifies no injury, particularly as LAFD confirmed that he was not the victim of a crime. Plaintiff’s mere speculation regarding 111 W 7’s role in causing this incident is insufficient to overcome his pleading burden.

G.

9th

Cause of Action: Violations of Tenant Harassment Law – SUSTAINED with LEAVE TO AMEND

Plaintiff’s

ninth cause of action is inadequately pled. Civil Code section 1942.5 provides tenants with the right to bring a civil action against landlords who engage in retaliatory conduct. “Under section 1942.5 it is unlawful for a lessor to ‘bring an action’ against a lessee to ‘recover possession ... for the purpose of retaliating against the lessee because he or she ... has lawfully and peaceably exercised any rights under the law.’” (Banuelos v. LA Investment, LLC (2013) 219 Cal.App.4th 323, 327–328.) Additionally, a landlord cannot cause the lessee to quit involuntarily, increase the rent, or decrease services in retaliation for the tenant’s exercise of his rights. (Civ. Code § 1942.5, subd. (a).)

Here,

Plaintiff alleges that Defendants retaliated against Plaintiff after he

complained about safety issues at the Property by “filing frivolous unlawful detainer proceedings” against Plaintiff “based on a fraudulent notice [to] quit.” (Compl., ¶ 104.) Plaintiff further alleges that Defendants have harassed Plaintiff by refusing to make repairs and discriminating against Plaintiff by attempting to evict him. (Id. ¶¶ 105-106, 109.)

111 W 7

argues that the litigation privilege bars liability for filing the UD proceedings and notices to quit in preparation of litigation. However, California courts have found that “the scheme of retaliatory eviction remedies in section 1942.5 ... would be rendered significantly inoperative if the litigation privilege were to apply.” (Winslett v. 1811 27th Avenue, LLC (2018) 26 Cal.App.5th 239, 254.) Thus, section 1942.5 “create[s] an exception to the litigation privilege.” (Ibid.; Banuelos v. LA Investment, LLC (2013) 219 Cal.App.4th 323, 333–334.)

Further,

to the extent that 111 W 7 argues that this cause of action is barred by the preclusion doctrines, the Court adopts its above analysis and finds that this defense is premature based on the still-pending appeal. (See supra, Section I.E.)

Nevertheless,

the issue with Plaintiff's tenant harassment/retaliation claim is that the allegations pertaining to the timeline of Plaintiff's complaints, the habitability concerns at the Property are impermissibly vague. (See supra, Section I.E.) Other than identifying two UD actions filed by 111 W 7, Plaintiff does not identify the specific acts (or dates) of the conduct by 111 W 7 in particular, as opposed to the other Defendants. Plaintiff also fails to identify any specific exercise of his own statutory rights under Civ. Code Div. 3, Pt. 4, T. 5, Ch. 2 or any formal complaint to an appropriate agency about either the conditions of the Property or 111 W 7's conduct. (Civ. Code, § 1942.5, subd. (a) [“If the lessor retaliates against the lessee because of the exercise by the lessee of the lessee's rights under this chapter or because of the lessee's complaint to an appropriate agency as to tenantability of a dwelling...”].) Plaintiff must allege the harassing conduct by 111 W 7 and the causal relationship to Plaintiff's protected conduct to state a claim under the applicable tenant harassment statutes.

II. MOTION

TO STRIKE OF DEFENDANT 111 W 7 OWNER, LLC – DENIED as MOOT

111 W 7

moves for an order striking Plaintiff's request for punitive damages from the Complaint. In light of the above ruling on 111 W 7's demurrer, the Complaint no longer states any claim to support an award of punitive damages. Accordingly, the Court finds the motion to strike is MOOT.

III. DEMURRER

OF DEFENDANT SBDTLA – SUSTAINED with LEAVE TO AMEND

SBDTLA

demurs to the second through sixth causes of action pursuant to Code of Civil Procedure section 430.10, subds. (e) and (f).

A.

2nd

Cause of Action: Specific Performance/Equitable Conveyance – SUSTAINED with LEAVE TO AMEND

Plaintiff's

second cause of action is inadequately pled. SBDTLA argues that Plaintiff has not demonstrated that the "Right to Purchase" provision in the Lease constitutes an enforceable "Right of First Offer" ("ROFO") as a matter of law, let alone that the Unit was ever developed as a separately conveyable condominium as contemplated by the Right to Purchase. (Mot., at pp. 5-6.) For the same reasons described above with respect to 111 W 7, Plaintiff has not sufficiently alleged facts demonstrating that the Right to Purchase was enforceable against SBDTLA due to a lack of adequate notice and a lack of certainty in the terms of the provision. (See supra, Section I.A.)

B.

3rd

Cause of Action: Constructive Trust – SUSTAINED with LEAVE TO AMEND

Plaintiff's

third cause of action is inadequately pled. Pursuant to the above-identified legal authorities, a constructive trust is an equitable remedy, not an independent cause of action. (See supra, Section I.B.) Plaintiff

concedes this point. (Opp., at p. 12.) Accordingly, the Court sustains the demurrer to this cause of action, but permits Plaintiff leave to the limited extent that Plaintiff can properly recharacterize his request for a constructive trust as a remedy.

C.

4th

Cause of Action: Cancellation of Instruments – SUSTAINED with LEAVE TO AMEND

Plaintiff's

fourth cause of action is inadequately pled. Plaintiff appears to concede that he is alleging that the grant deeds involving SBDTLA are merely “voidable.” (Opp., at p. 12.) For the same reasons discussed supra, the Court finds that Plaintiff fails to allege sufficient facts to dispute that SBDTLA was not a bona fide purchaser when purchasing the Property from Main SB or that 111 W 7 was not a bona fide purchaser when purchasing the Property from SBDTLA. A deed that is merely voidable “can be relied upon and enforced by a bona fide purchaser.” (see *Fallon v. Triangle Management Services, Inc.* (1985) 169 Cal.App.3d 1103, 1106.) Accordingly, the Court incorporates the above analysis regarding this cause of action against 111 W 7 by reference herein. (See supra, Section I.C.)

D.

5th

Cause of Action: Quiet Title – SUSTAINED with LEAVE TO AMEND

Plaintiff's

fifth cause of action is inadequately pled. Plaintiff concedes that his alleged claim to title is merely equitable in nature. (Opp., at p. 13.) However, an action to quiet title to property will ordinarily not lie in favor of an equitable title holder against the legal title holder. (See e.g. *Bacon v. Bacon* (1937) 21 Cal.App.2d 540, 544.) Accordingly, the Court incorporates the above analysis regarding this cause of action against 111 W 7 by reference herein. (See supra, Section I.D.)

E.

6th

Cause of Action: Declaratory Relief – SUSTAINED with LEAVE TO AMEND

Plaintiff's

sixth cause of action is inadequately pled. Plaintiff's declaratory relief claim relies on the premise that the Right to Purchase set for in the Lease is a valid and enforceable ROFO in favor of Plaintiff, that SBDTLA took ownership with notice of the ROFO, and that the subsequent transfers of the Property were made in violation of Plaintiff's ROFO. (Compl., ¶¶ 75, 77.) As described above, the plain language of the Right to Purchase in the Lease contradicts Plaintiff's characterization of this provision as a "ROFO" and Plaintiff does not state sufficient facts to demonstrate either that Defendants, including SBDTLA, had sufficient notice of this alleged "right" based on the uncertain terms of the provision or that the "right" was ever triggered. Plaintiff must allege more specific factual details demonstrating that the SBDTLA and 111 W 7 were not bona fide purchasers, that SBDTLA had sufficient notice of a clear and definite ROTO, and that SBDTLA nevertheless knowingly violated Plaintiff's vested ROTO. Without more evidence of an enforceable, vested purchase right and notice to SBDTLA, Plaintiff has not demonstrated an actual present controversy requiring declaratory relief.

IV. MOTION

TO STRIKE OF DEFENDANT SBDTLA – DENIED as MOOT in part and DENIED in part

SBDTLA

moves to strike Plaintiff's requests for equitable relief (specific performance, conveyance of title, injunctive relief, constructive trust, quiet title, cancellation of instruments) from the Complaint. In light of the above ruling on SBDTLA's demurrer, the Complaint no longer states any claim to enforce Plaintiff's alleged equitable interest in the Unit to support a request for these equitable remedies. Accordingly, the Court finds the motion to strike Plaintiff's requests for equitable remedies is MOOT.

SBDTLA

moves to strike Plaintiff's request for punitive damages. Plaintiff only appears to be seeking punitive damages in connection with his ninth cause of action, which is only asserted against 111 W 7, not SBDTLA. In the event that Plaintiff is seeking punitive damages in connection with his constructive eviction claim, SBDTLA has offered no legal authority or argument pertaining to this request and therefore has not overcome its burden in moving to strike punitive damages request. Likewise, SBDTLA also moves to strike Plaintiff's request for attorneys' fees. SBDTLA entirely omits any analysis on the basis for this request from its motion, and thus, fails to overcome its burden in moving to strike Plaintiff's attorneys' fees request. Accordingly, SBDTLA's

motion to strike is DENIED with respect to punitive damages and attorneys' fees.

V. REQUESTS FOR JUDICIAL NOTICE

Defendant

111 W 7 requests judicial notice of the Minute Order in the UD Action (dated 4/6/2026) and the Judgment entered in the UD Action (dated 4/6/2026). In a supplemental request submitted in support of 111 W 7's reply, 111 W 7 also requests judicial notice of the Certified Transcript of Proceedings in the UD Action from 4/6/2026. The Court takes judicial notice of the existence of these records pursuant to Evidence Code section 452, subd. (d).

SBDTLA

requests judicial notice of Exhibits A and B to Plaintiff's Complaint (filed 3/25/2026) and the Judgment entered in the UD Action (dated 4/6/2026). The Court takes judicial notice of the existence of these records pursuant to Evidence Code section 452, subd. (d).

Defendants 111 W 7 Owner, LLC and Defendants SBDTLA

1, LLC, SBDTLA 2, LLC, SBDTLA 3, LLC, and SBDTLA 4, LLC to serve notice of the rulings on their respective motions. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court's website on 7/28/26 at 8:30 a.m.